

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 12
SEPTEMBER 02, 2026
8:30 a.m.

1. BRANDON CASKEY V. DAWN CASKEY

26FL0706

This matter is before the court for hearing of the Request for Order (RFO) filed by the Petitioner on August 13, 2026, to: (1) set aside orders for custody and visitation in the court's July 14, 2026, temporary restraining order (TRO) issued in Case Number 26FL0537; (2) modify child custody and visitation; (3) modify spousal support and child support; (4) issue order authorizing immediate sale of the marital residence; and (5) award attorney fees and costs. The RFO also includes a request for temporary emergency orders, which the court denied.

As an initial matter, there are two related cases currently pending: (1) the instant case, 26FL0706, which is a petition for dissolution; and (2) Case Number 26FL0537,¹ which is a domestic violence restraining order case. To date, there has been no request submitted by either party to consolidate the cases. The court, on its own motion and in the interest of judicial economy, hereby consolidates the cases and designates the instant case (26FL0706) as the lead case. All future filings for both cases shall be filed in the lead case only.² For hearings currently set under Case Number 26FL0537, the court intends to transfer such hearings under the lead case number, 26FL0706.

Presently, there is a hearing set in Case Number 26FL0537 for September 02, 2026, at 1:30 p.m. on Petitioner's RFO filed August 13, 2026. The court, on its own motion and in the interest of judicial economy, continues the hearing in the instant case (26FL0706) to 1:30 p.m., September 2, 2026, to be heard concurrently with Petitioner's RFO filed August 13, 2026.

Lastly, the court notes that an evidentiary hearing is set under Case Number 26FL0537 for October 22, 2026. The court intends to advance that hearing to October 08, 2026, at 8:30 a.m. if parties and counsel are available.

The court does not intend to modify the existing TRO except as needed to ensure Mr. is getting visits with the parties' child per the court order pending the hearing.

TENTATIVE RULING #1: THE COURT ON ITS OWN MOTION AND IN THE INTEREST OF JUDICIAL ECONOMY HEREBY CONSOLIDATES THE INSTANT CASE (26FL0706) WITH CASE NUMBER 26FL0537 AND DESIGNATES 26FL0706 AS THE LEAD CASE. ADDITIONALLY, THE COURT, ON ITS OWN MOTION AND IN THE INTEREST OF JUDICIAL ECONOMY, CONTINUES THE INSTANT HEARING TO 1:30 P.M., WEDNESDAY, SEPTEMBER 02, 2026, TO BE HEARD CONCURRENTLY WITH PETITIONER'S RFO FILED AUGUST 13, 2026.

¹ Dawn Caskey initiated Case Number 26FL0537. Accordingly, in that case, she has been referred to as the Petitioner; and Brandon Caskey has been referred to as the Respondent.

² Having consolidated the cases, the court will here on out refer to Brandon Caskey as the Petitioner and Dawn Caskey as the Respondent, even for filings related to the domestic violence restraining order.